[4310-84]

[M-30912; Public Land Order 5635]

MONTANA

Prior Amendment of Executive Order No. 7509; Prior Revocation of Public Land Order No. 5498; Change of Name to Charles M. Russell National Wildlife Refuge; Clarification of Administration and Management Under National Wildlife Refuge System Administration Act

AGENCY: Bureau of Land Management (Interior).

ACTION: Final rule.

SUMMARY: This public land order changes the name of the Charles M. Russell National Wildlife Range to the Charles M. Russell National Wildlife Refuge. Also, it affords notice of prior statutory action taken to revoke or revise public land orders or Executive orders, as necessary, to change the administration and management of the refuge area in accordance with Pub. L. 94-223.

EFFECTIVE DATE: May 3, 1978.

FOR FURTHER INFORMATION CONTACT:

Eldon G. Hayes, 202-343-8731.

By virtue of the authority that is vested in the Secretary of the Interior by law, including the authority vested in him by section 204 of the Act of October 21, 1976 (Pub. L. 94-579, 90 Stat. 2751), and in accordance with the Act of February 27, 1976 (Pub. L. 94-223, 90 Stat. 199), which amended section 4(a) of the National Wildlife Refuge System Administration Act of 1966 (16 U.S.C. 668dd(a)), it is ordered as follows:

1. The Act of February 27, 1976 (Pub. L. 94-223, 90 Stat. 199), which amended section 4(a) of the National Wildlife Refuge System Administration Act of 1966 (16 U.S.C. 668dd(a)), provides that units of the National Wildlife Refuge System, including the Fort Peck Game Range, the name of which was changed to the Charles M. Russell National Wildlife Range by Public Land Order No. 2951 of February 25, 1963 (28 FR 1871), shall be administered by the Secretary of the Interior exclusively through the United States Fish and Wildlife Service. Accordingly, notice is hereby given that effective as of February 27, 1976 and by virtue of Pub. L. 94-223, supra:

(a) Public Land Order No. 5498 of April 25, 1975 (40 FR 18996), as amended by Public Land Order No. 5500 of May 23, 1975 (40 FR 23472), which provided for the transfer of all of the Secretary's delegable authority for the operation and administration of Charles M. Russell National Wildlife Range, as described in the aforesaid orders, to the Bureau of Land Management, was revoked; and such authority was, and is now, vested solely in the United States Fish and Wildlife Service;

(b) The operation and administration of the Charles M. Russell National Wildlife Range, including grazing, was to be administered, and is now being administered, in accordance with the National Wildlife Refuge System Administration Act, as amended, except that those holding grazing privileges, validly issued by the Bureau of Land Management and in effect on February 27, 1976, are permitted to continue such privileges under terms and conditions imposed by the Taylor Grazing Act, and implementing regulations, until those privileges expire. The renewal or initiation of grazing privileges subsequent to February 27, 1976, is in accordance with the National Wildlife Refuge System Administration Act, as amended, and implementing regulations.

(c) Executive Order No. 7509 of December 11, 1936 (1 FR 2149), which established the Charles M. Russell National Wildlife Range as the Fort Peck Game Range, was modified to the extent necessary for it to conform to the provisions of (a) and (b), above.

2. The name of the Charles M. Russell National Wildlife Range, as so designated by Public Land Order No. 2951 of February 25, 1963 (28 FR 1871), is hereby changed to the Charles M. Russell National Wildlife Refuge.

3. This order does not affect or alter in any respect the Notice of Proposed Withdrawal, M-39021 of March 4, 1975, relating to the Charles M. Russell National Wildlife Range, as published at 40 FR 11365.

Dated: April 25, 1978.

GUY R. MARTIN,
Assistant Secretary of the Interior.

[FR Doc. 78-12034 Filed 5-2-78; 8:45 am]

[4310-84]

[Nev. 051742; Public Land Order 5634]

NEVADA

Prior Amendment of Executive Order No. 7522; Prior Revocation of Public Land Order No. 5497; Consolidation of Charles Sheldon Antelope Range and Charles Sheldon Wildlife Refuge; Change of Name to Sheldon National Wildlife Refuge; Clarification of Administration and Management Under National Wildlife Refuge System Administration Act

AGENCY: Bureau of Land Management (Interior).

ACTION: Final rule.

SUMMARY: This public land order changes the names of the Charles Sheldon Antelope Range and the Charles Sheldon Wildlife Refuge and combines them as the Sheldon National Wildlife Refuge. Also, it affords notice of prior statutory action taken to revoke or revise public land orders or Executive orders, as necessary, to change the administration and management of the area in accordance with Pub. L. 94-223.

EFFECTIVE DATE: May 3, 1978.

FOR FURTHER INFORMATION CONTACT:

Eldon G. Hayes, 202-343-7831.

By virtue of the authority that is vested in the Secretary of the Interior by law, including the authority that is vested in him by section 204 of the Act of October 21, 1976 (Pub. L. 94-579, 90 Stat. 2751), and in accordance with the Act of February 27, 1976 (Pub. L. 94-223, 90 Stat. 199), which amended section 4(a) of the National Wildlife Refuge Administration Act of 1966 (16 U.S.C. 668dd(a)), it is ordered as follows:

1. The Act of February 27, 1976 (Pub. L. 94-223, 90 Stat. 199), which amended section 4(a) of the National Wildlife Refuge System Administration Act of 1966 (16 U.S.C. 668dd(a)), provides that units of the National Wildlife Refuge System, including the Charles Sheldon Antelope Range, shall be administered by the Secretary of the Interior exclusively through the United States Fish and Wildlife Service. Accordingly, notice is hereby given that effective as of February 27, 1976 and by virtue of Pub. L. 94-223, supra:

(a) Public Land Order No. 5497 of April 25, 1975 (40 FR 18997), as amended by Public Land Order 5508 of June 23, 1975 (40 FR 27659), which provided for the transfer of all the Secretary's delegated authority for the operation and administration of the Charles Sheldon Antelope Range, as described in the aforesaid orders, to the Bureau of Land Management, was revoked; and such authority was, and is now, vested solely in the United States Fish and Wildlife Service;

(b) The operation and administration of the Charles Sheldon Antelope Range, including grazing, was to be administered, and is now being administered, in accordance with the National Wildlife Refuge System Administration Act, as amended, except that, those holding grazing privileges validly issued by the Bureau of Land Management and in effect on February 27, 1976, are permitted to continue such privileges under terms and conditions imposed by the Taylor Grazing Act, and implementing regulations, until those privileges expire. The renewal or

initiation of grazing privileges subsequent to February 27, 1976, is in accordance with the National Wildlife Refuge System Administration Act, as amended, and implementing regulations.

(c) Executive Order No. 7522 of December 21, 1936 (1 FR 2184), which established the Charles Sheldon Antelope Range, was modified to the extent necessary for it to conform to the provisions of (a) and (b), above.

2. For increased administrative efficiency, the lands and interests in land comprising the Charles Sheldon Wildlife Refuge, as established by Executive Order No. 5540, of January 26, 1931, and the adjoining Charles Sheldon Antelope Range, as established by Executive Order No. 7522 of December 21, 1936, are hereby consolidated into one administrative unit. Insofar as it combines these two units of the National Wildlife Refuge System, this order is not intended to alter or modify in any respect either of the aforementioned Executive Orders. As consolidted, the Charles Sheldon Wildlife Refuge, the name of which was so designated by Executive Order No. 5540, and the Charles Sheldon Antelope Range, the name of which was so designated by Executive Order No. 7522, shall hereafter be designated and known as the Sheldon National Wildlife Refuge.

3. This order does not affect or alter in any respect the Notice of Proposed Withdrawal, Nev-051742, relating to the Charles Sheldon Antelope Range, as published at 40 FR 8368.

APRIL 25, 1978.

GUY R. MARTIN,
Assistant Secretary of the Interior.

[FR Doc. 78-12033 Filed 5-2-78; 8:45 am]

[4910-22]

Title 49—Transportation

CHAPTER III—FEDERAL HIGHWAY ADMINISTRATION, DEPARTMENT OF TRANSPORTATION

SUBCHAPTER B—FEDERAL MOTOR CARRIER SAFETY REGULATIONS

[Amendment No. 77-4]

PART 386—RULES OF PRACTICE FOR MOTOR CARRIER SAFETY PROCEEDINGS

Service of Responses to Claims; Amendment

AGENCY: Federal Highway Administration, DOT.

ACTION: Amendment to final rule.

SUMMARY: On October 4, 1977, the Federal Highway Administration issued certain amendments to the rules of practice. Among the changes was a requirement that replies in civil forfeiture cases be served on certain named persons. The service specified should only be required in proceedings under the Hazardous Materials Transportation Act because these are the only civil forfeiture cases that are assigned docket numbers and go to hearing. This amendment corrects the rules of practice by eliminating the service requirements for civil forfeiture claims not processed under the Hazardous Materials Transportation Act.

EFFECTIVE DATE: May 3, 1978.

FOR FURTHER INFORMATION CONTACT:

Gerald M. Tierney, Office of the Chief Counsel (HCC-20), 202-426-0346, Federal Highway Administration, 400 Seventh Street SW., Washington, D.C. 20590. Office hours are 7:45 a.m. to 4:15 p.m. e.t., Monday-Friday.

Therefore, 49 CFR 386.13(b) is amended to read as follows:

§ 386.13 Petitions to review, replies.

* * * * *

(b) * * *

(iii) In proceedings under the Hazardous Materials Transportation Act, certification that the reply has been served in accordance with § 386.38.

* * * * *

(49 U.S.C. 304; Pub. L. 93-633, 88 Stat. 2156; 49 U.S.C. 1801, et seq.; 49 CFR 1.48, 301.60.)

Issued this 25th day of April 1978, in Washington, D.C.

ROBERT A. KAYE,
Director, Bureau of Motor Carrier Safety.

[FR Doc. 78-11995 Filed 5-2-78; 8:45 am]

[7035-01]

CHAPTER X—INTERSTATE COMMERCE COMMISSION

SUBCHAPTER A—GENERAL RULES AND REGULATIONS

[Amendment No. 3 to Service Order No. 1262]

PART 1033—CAR SERVICE

North Stratford Railroad Corp. Authorized To Operate Over Certain Tracks Owned by the State of New Hampshire

AGENCY: Interstate Commerce Commission.

ACTION: Emergency Order (Amendment No. 3 to Service Order No. 1262).

SUMMARY: Service Order No. 1262 authorizes the North Stratford Railroad Corp. to operate a line of railroad between North Stratford, N.H., and Beecher Falls, Vt., owned by the State of New Hampshire. Resumption of Operation over this line restores rail service to shippers affected by its abandonment by the Maine Central, its former owner. Amendment No. 3 to Service Order No. 1262 extends for six months the emergency authority granted to the North Stratford Railroad for operation to this line.

DATES: Effective 11:59 p.m., April 30, 1978. Expires 11:59 p.m., October 31, 1978.

FOR FURTHER INFORMATION CONTACT:

C. C. Robinson, Chief, Utilization and Distribution Branch, Interstate Commerce Commission, Washington, D.C. 20423, telephone 202-275-7840, telex 89-2742.

SUPPLEMENTARY INFORMATION: This amendment is printed in full below.

At a Session of the Interstate Commerce Commission, Railroad Service Board, held in Washington, D.C., on the 27th day of April, 1978.

Upon further consideration of Service Order No. 1262 (42 FR 16780, 43637, and 57317), and good cause appearing therefor:

It is ordered, That:

Service Order No. 1262 be, and it is hereby, amended by substituting the following paragraph (f) for paragraph (f) thereof:

§ 1033.1262 Service Order No. 1262.

(a) *North Stratford Railroad Corp., authorized to operate over certain tracks owned by the State of New Hampshire* * * *

* * * * *

(f) *Expiration date.* The provisions of this order shall expire at 11:59 p.m., October 31, 1978, unless otherwise modified, changed, or suspended by order of this Commission.

Effective date. This amendment shall become effective at 11:59 p.m., April 30, 1978.

(49 U.S.C. 1(10-17).)

It is further ordered, That a copy of this amendment shall be served upon the Association of American Railroads, Car Service Division, as agent of all railroads subscribing to the car service and car hire agreement under the terms of that agreement, and upon the American Short Line Railroad Association; and that notice of this amendment be given to the general public by depositing a copy in the Office of the Secretary of the Commission at Wash-